

BEFORE THE IOWA BOARD OF
SOCIAL WORK EXAMINERS

IN THE MATTER OF:	)	CASE NUMBER: 00-05
	)	
JAMES LEWIS RICE,	)	SETTLEMENT AGREEMENT
Respondent.	)	AND FINAL ORDER

COME NOW the Board of Social Work Examiners of the State of Iowa ("Board") and James Lewis Rice ("Respondent"), and pursuant to Iowa Code sections 17A.10 and 272C.3(4), enter into the following Settlement Agreement and Final Order of the contested case currently on file against the Respondent:

1. The Respondent was originally licensed to practice as a social worker in the state of Iowa on January 10, 1995, and holds license number 01035.
2. A Statement of Charges was filed against the Respondent on September 25, 2000. A contested case hearing in this matter is scheduled for February 12, 2001.
3. The Respondent admits the allegations contained in the Statement of Charges.
4. The Board has jurisdiction over the parties and subject matter of the Statement of Charges.
5. Execution of this Settlement Agreement and Final Order constitutes the resolution of this contested case. Respondent has a right to a hearing on the charges, but waives his right to hearing and all attendant rights, including the right to appeal, by freely and voluntarily agreeing to this Settlement Agreement and Final Order. Once entered, this Order shall have the force and effect of a disciplinary order entered following contested case hearing.

6. Respondent is freely and voluntarily entering into this Settlement Agreement and Final Order, and he agrees that the State's counsel may present this agreement to the Board.

7. This agreement is subject to approval of the Board. If the Board approves this agreement, it becomes the final disposition of this matter. If the Board fails to approve this agreement, it shall be of no force or effect to either party.

8. This agreement shall be part of the permanent record of Respondent and shall be considered by the Board in determining the nature and severity of any disciplinary action to be imposed in the event of any future violations.

9. In the event Respondent violates or fails to comply with any of the terms of this Informal Settlement and Final Order, the Board may initiate appropriate action to revoke or suspend Respondent's license or to impose other licensee discipline in accordance with Iowa Code section 272C.3(2)(a).

10. This Settlement Agreement and Final Order as well as the Statement of Charges are public records available for inspection and copying in accordance with the requirements of Iowa Code Chapter 22.

11. The Board's approval of this agreement shall constitute a FINAL ORDER of the Board.

IT IS THEREFORE ORDERED:.

12. Upon the Board's approval of this Settlement Agreement and Final Order, the Respondent's license shall be suspended indefinitely until further order of the Board. During the entire period of suspension, the Respondent shall not hold himself out to be a licensed social worker and shall not engage in any of the practices or

aspects of the practice of social work in the State of Iowa for which a license is required.

13. Respondent may apply for reinstatement when the following conditions have been satisfied:

a. Respondent submits to a comprehensive, multi-disciplinary evaluation by Dr. Gary Schoener, 2421 Chicago Avenue South, Minneapolis, Minnesota, 55404, telephone (612) 870-0565. Respondent is responsible for all costs associated with this evaluation. 2

b. Prior to the evaluation, the facility shall be provided with the Statement of Charges, the Settlement Agreement, and the investigative file in this contested case.

c. The facility shall forward directly to the Board an evaluation report and initial treatment plan. The evaluation report shall include a recommendation as to whether Respondent is safe to return to the practice of social work and additional recommendations or restrictions as indicated. The initial treatment plan shall be subject to the approval of the Board.

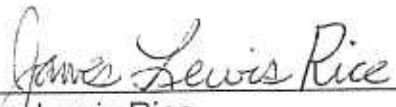
d. The Respondent shall comply with the recommendations of the facility and shall undergo treatment pursuant to such approved plan.

e. The Respondent shall sign a release which (a) will enable the Board to freely communicate with all individuals involved in Respondent's evaluation and treatment, (b) provide for full access by the Board to all records maintained with respect to such evaluation and treatment, and (c) provide for monthly reports on Respondent's progress to be submitted directly to the Board. It is the Respondent's responsibility to ensure that such monthly progress reports are provided to the Board.

f. Upon compliance with the above provisions, Respondent may submit an application for reinstatement to the Board pursuant to 645 Iowa Administrative Code 11.31. Respondent's license shall not be reinstated except upon a showing that Respondent has complied with the terms of this Settlement Agreement, that the basis for the suspension no longer exists, and that it would be in the public interest for the license to be reinstated. The burden of proof to establish such facts shall be on the Respondent.

14. Respondent agrees that following a hearing on his application for reinstatement the Board may issue an Order which further suspends Respondent's license, or which places Respondent's license on probation for a period of time subject to terms, conditions and restrictions which the Board deems appropriate, or which imposes other appropriate discipline.

AGREED AND ACCEPTED:



James Lewis Rice,
Respondent

1-15-01
Date

This Settlement Agreement and Final Order is approved by the Board on
2/12/01, 2001.



JAMES YEAST
Iowa Board of Social Work Examiners
Board Chairperson

Copies to:

Heather L. Adams
Assistant Attorney General
Hoover State Office Building
Des Moines, IA 50319

Norman Denenberg
Attorney at Law
3814 Dodge Street
Omaha, NE 68131

BEFORE THE IOWA BOARD OF
SOCIAL WORK EXAMINERS

IN THE MATTER OF:	)	CASE NUMBER: 00-05
	)	
JAMES LEWIS RICE,	)	STATEMENT OF CHARGES
	)	
Respondent.	)	

TO THE ABOVE NAMED RESPONDENT:

The Iowa Board of Social Work Examiners has jurisdiction of this matter pursuant to Iowa Code chapters 17A, 154C, and 272C (1999).

Licenses issued by the Board are subject to the laws of the state of Iowa and to the administrative rules of the Board.

Respondent James Lewis Rice was at all times during the following events a licensed independent social worker. Respondent was issued license number 01035 to practice as a social worker in the state of Iowa on January 10, 1995, as recorded in the permanent records in the office of the Board.

Respondent's license to practice social work in Iowa is current and will next expire on December 31, 2000.

Respondent's current address as reported to the Board is 5060 Jackson Street, Omaha, Nebraska.

COUNT I

Respondent is charged with engaging in unethical conduct in the practice of social work in violation of Iowa Code section 272C.10(3) and 645 Iowa Administrative Code 280.212(3), when he engaged in a sexual relationship with client # 1.

COUNT II

Respondent is charged with engaging in prohibited acts in the practice of social work in violation of 645 Iowa Administrative Code 280.212(14)(e), when he engaged in a sexual relationship with client # 1.

COUNT III

Respondent is charged with making sexual advances toward, or engaging in physical intimacies or sexual activities with a client or patient, in violation of 645 Iowa Administrative Code 280.212(9) and 280.213(3), when he engaged in a sexual relationship with client # 1.

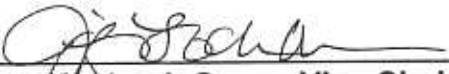
CIRCUMSTANCES

1. Respondent provided therapy to client # 1 from January of 1999 to May of 1999.
2. Respondent engaged in a sexual relationship with client # 1.

FINDING OF PROBABLE CAUSE

On September 25, 2000, the Iowa Board of Social Work Examiners found probable cause to file this Statement of Charges and to order that a hearing be set in this case.

Executed this 25th day of September, 2000.


Jennifer Lock Oman, Vice Chair
Iowa Board of Social Work Examiners

**STATE OF IOWA
BEFORE THE IOWA BOARD OF SOCIAL WORK EXAMINERS**

IN THE MATTER OF:	)	CASE NO. 00-005
	)	
JAMES LEWIS RICE	)	NOTICE OF HEARING
License No. 304-01035	)	
	)	
RESPONDENT	)	

YOU ARE HEREBY NOTIFIED that on September 25, 2000, the Iowa Board of Social Work Examiners found probable cause to file a Statement of Charges against you. If any of the allegations against you are founded, the Board has authority to take disciplinary action against you under Iowa Code chapters 17A, 154C, and 272C (1999) and 645 Iowa Administrative Code chapters 9, 11, 13, and 280.212. A copy of the Statement of Charges is attached, and sets forth the particular statutes and rules which you are alleged to have violated, and further provides a short and plain statement of the matters asserted.

IT IS HEREBY ORDERED that a disciplinary contested case hearing be held upon the Statement of Charges on Monday, February 12, 2001, before the Board. The hearing shall begin at 9:00 a.m. and shall be held in the Lucas State Office Building-5th Floor Professional Licensure Board Room #525, 321 E. 12th Street, Des Moines, Iowa. The Board shall serve as presiding officer, but the Board may request an Administrative Law Judge make initial rulings on pre-hearing matters, and be present to assist and advise the Board at hearing.

Within 20 days of the date you are served with the Statement of Charges and Notice of Hearing, you are required by 645 IAC 11.12 to file an answer to the charges. In that answer, you should also state whether you will require an adjustment of the date and time of the hearing.

At hearing, you may appear personally and be represented by counsel at your own expense. You will be allowed the opportunity to respond to the charges against you. The procedural rules governing the conduct of the hearing are found at 645 IAC chapter 11.

The office of the Attorney General is responsible for representing the public interest (the State) in this proceeding. Copies of all pleadings filed with the Board should be provided to counsel for the State at the following address:

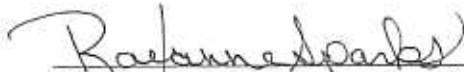
Heather Adams
Assistant Attorney General
Iowa Attorney General's Office
2nd Floor, Hoover State Office Building
Des Moines, IA 50319
Phone (515) 281-3441

If you fail to appear at hearing, the Board may enter a default decision or proceed with the hearing and render a decision in your absence, in accordance with Iowa Code section 17A.12(3) and 645 IAC 11.21.

This matter may be resolved by settlement agreement. The procedural rules governing the Board's settlement process are found at 645 IAC chapter 12. If you are interested in pursuing settlement of this matter, please contact Heather Adams, Assistant Attorney General, at the above telephone number.

If you require the assistance of auxiliary aids or services to participate in the hearing because of a disability, immediately call 515/281-5787.

Dated this 28th day of September 2000.



Roxanne Sparks, Board Administrator
Iowa Board of Social Work Examiners